

		hour zone, in a crowded beach recreation area at 1:30 on a weekend afternoon. (<i>Id.</i> at p. 86.) Here, the Complaint alleges that Defendant voluntarily consumed alcohol and then drove approximately 90 miles per hour in a 65-mile-per-hour zone, made an abrupt and unsafe movement across lanes of traffic, and rear-ended Plaintiff's vehicle. (See Compl., ¶¶ 10–11., 30.) The Complaint further pleads that the California Highway Patrol determined that Defendant was the sole cause of the collision based on driving under the influence and making an unsafe turn, and that Defendant was arrested at the scene for driving under the influence. (See Compl., ¶ 12.) Taken together, these allegations go beyond alleging that Defendant drove while intoxicated. They plead voluntary conduct taken in conscious and willful disregard for the rights and safety of others. (See Compl., ¶ 30.) Accepting these allegations as true, which the court must do for purposes of this motion, the Complaint sufficiently supports an award of the punitive damages. Therefore, the court will deny the motion to strike. Plaintiff shall give notice of this ruling.
3	Ahannavard vs. Ettefagh 30-2023-01360376	<u>Motion for Attorney's Fees</u> Defendant and Cross-Complainant Marja Ettefagh's Motion for Attorneys Fees is DENIED. <u>Pending Motion</u> Defendant and Cross-Complainant Marjan Ettefagh moves for an award of attorney's fees in the amount of \$31,920 and costs in the amount of \$2,669,], pursuant to [Civil Code section 1717. <u>Standard for Motion for Attorney's Fees (in General)</u> Generally, attorney's fees are borne by the party that incurred them. (See <i>Pederson v. Kennedy</i> (1982) 128 Cal.App.3d 976, 978-79). Therefore, a party may recover attorney's fees only if provided for by contract or statute. (See Code Civ. Proc., § 1033.5, subd. (a)(10); see also <i>LNSU # 1, LLC v. Alta Del Mar Coastal Collection Community Association</i> (2023))

		94 Cal.App.5th 1050, 1081 ["Each party to an action must pay its own attorney fees unless a statute or contract requires the opposing party to pay them."].) For example, Civil Code section 1717 states that: In any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs. (Civil Code, § 1717, subd. (a).) On a motion for attorney's fees, the moving party has the burden of establishing entitlement to an award, including that the fees were incurred and that they were reasonably incurred. (<i>ComputerXpress, Inc. v. Jackson</i> (2001) 93 Cal.App.4th 993, 1020; <i>Christian Research Institute v. Alno</i> (2008) 165 Cal.App.4th 1315, 1320.) Here, it is undisputed that the contract between the parties provides that: "Contractor shall be entitled to recover Attorney's fees and Costs associated with any action to enforce the terms of this agreement. Such Costs may include, but are not limited to, expert witness fees, expert testing, court costs if any, as outlined in Section 12." Pursuant to Civil Code section 1717, the attorney's fees provision applies equally to Plaintiff (who was the contractor) and Defendant (who was the homeowner). (See Civil Code, § 1717, subd. (a).) Accordingly, the court must determine whether Defendant is the prevailing party. <u>Prevailing Party</u> Civil Code section 1717 defines "prevailing party" to mean "the party who recovered a greater relief in the action on the contract." (Civil Code, § 1717, subd. (b)(1).) The "prevailing party" includes "the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant." (Code Civ. Proc., § 1032, subd. (a)(4).)
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		In this case, the court ruled in favor of Plaintiff/Cross-Defendant on his claims for breach of contract and quantum meruit but against him on his claim for foreclosure of the mechanic's lien. Relatedly, the court ruled against Defendant/Cross-Complainant on her cross-claims for breach of contract and common counts and in her favor on her cross-claim to cancel the mechanic's lien. Defendant contends that she is the prevailing party in this action because she achieved her main litigation objective to release the mechanic's lien. However, even if this were true, Defendant is not the prevailing party <i>on the contract</i>, as required by Civil Code section 1717. While Defendant argues that the attorney's fees provision in the contract is broad enough cover her action to cancel the mechanic's lien, the contract, by its terms, allows for an award of attorney's fees incurred "to enforce the terms of this agreement." The terms of the agreement were that Defendant would pay money in exchange for Plaintiff constructing an accessory dwelling unit. Defendant's attempt to cancel the mechanic's lien that Plaintiff placed on her property after the parties fell into disagreement about the performance of the agreement was not an attempt to enforce the terms of the agreement. Rather, the claims and cross-claims for breach of contract, quantum meruit, and common counts were the causes of action that sought to enforce the terms of the agreement. Thus, Defendant/Cross-Complainant is not the prevailing party on the contract. <u>Incomplete Relief or Non-Monetary Relief</u> However, even Defendant's cross-claim to cancel the mechanic's lien qualified as an action "to enforce the terms of this agreement," Defendant would still not be the prevailing party here. "If neither party achieves a complete victory on all the contract claims, it is within the discretion of the trial court to determine which party prevailed on the contract or
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		whether, on balance, neither party prevailed sufficiently to justify an award of attorney fees." (<i>Scott Co. of California v. Blount, Inc.</i> (1999) 20 Cal.4th 1103, 1109.) The court has the responsibility to determine which party is the prevailing party, and "may also determine that there is no party prevailing on the contract for purposes of this section." (<i>Ibid.</i>) "[T]ypically, a determination of no prevailing party results when both parties seek relief, but neither prevails, or when the ostensibly prevailing party receives only a part of the relief sought." (<i>Hsu v. Abbata, supra</i>, 9 Cal.4th at p. 875; see also <i>id.</i> at p. 876 ["[T]he trial court [retains] a measure of discretion to find no prevailing party when the results of the litigation are mixed."].) In addition, "[i]f any party recovers other than monetary relief and in situations other than as specified, the 'prevailing party' shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties on the same or adverse sides pursuant to rules adopted under Section 1034." (Code Civ. Proc., § 1032, subd. (a)(4).) As the Court of Appeals has explained: In these situations, "the trial court in its discretion determines the prevailing party, comparing the relief sought with that obtained, along with the parties' litigation objectives as disclosed by their pleadings, briefs, and other such sources." Thus, the trial court determines whether the party succeeded at a practical level by realizing its litigation objectives and the action yielded the primary relief sought in the case. (<i>Friends of Spring Street v. Nevada City</i> (2019) 33 Cal.App.5th 1092, 1104, citations omitted, quoting <i>On-Line Power, Inc. v. Mazur</i> (2007) 149 Cal.App.4th 1079, 1087.) "The prevailing party determination is to be made only upon final resolution of the contract claims and only by a 'comparison of the extent to which each party ha[s] succeeded and failed to succeed in its contentions." (<i>Hsu v. Abbata, supra</i>, 9 Cal.4th at p. 876.) "[I]n determining litigation success, courts should respect substance rather than form, and to this extent should be guided by 'equitable considerations.'" (<i>Id.</i> at p. 877.)
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		In identifying the prevailing party, the court may base its decision "on a pragmatic definition of the extent to which each party has realized its litigation objectives" (<i>Santisas v. Goodin</i> (1998) 17 Cal.4th 599, 622.) Here, a review of the Complaint, Cross-Complaint, and each party's conduct of the trial reveals that the primary litigation objective was to obtain monetary relief for the other party's alleged breach of the contract. The efforts to foreclosure on the mechanic's lien by (Plaintiff/Cross-Defendant) and to cancel the mechanic's lien (by Defendant/Cross-Complainant) were only taken to support the primary litigation objective of obtaining monetary relief. Here, Defendant did not obtain her primary litigation objective of obtaining monetary relief. In fact, Plaintiff alone received a monetary judgment. Although Defendant ultimately prevailed on her cross-claim to cancel the mechanic's lien, the pleadings and conduct of the trial show that this was not Defendant's main litigation objective. Defendant/Cross-Complainant obtained judgment in her favor on only one the causes of action that related to the mechanic's lien and thus, did not obtain her primary litigation objective. Therefore, the court will exercise its discretion and find that Defendant/Cross-Complainant is not the prevailing party here. Therefore, the court will deny Defendant/Cross-Complainant's motion for attorney's fees. <u>Costs</u> Generally, the "prevailing party" is entitled as a matter of right to recover costs of suit in any action or proceeding. (See Code Civ. Proc., § 1032, subd. (b).) For the reasons explained above, Defendant/Cross-Complainant is not the prevailing party, and therefore, is not entitled to costs. Thus, the court will deny Defendant/Cross-Complainant's motion for costs. Plaintiff/Cross-Defendant shall give notice of this ruling.
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4	Arcos vs. General Motors LLC 30-2025-01483295	<u>Motion for Attorney's Fees</u> Plaintiff Juliana Arcos' Motion for Attorney's Fees, Costs, and Expenses is GRANTED in part and DENIED in part. Defendant General Motors LLC is ORDERED to pay to Plaintiff Juliana Arcos reasonable attorney's fees in the amount of \$17,075.50 and costs in the amount of \$798.80 within 30 days of service of the notice of ruling. Plaintiff Juliana Arcos' evidentiary objections to the Declaration of Brian Whittemore in Support of General Motors, LLC's Opposition to Plaintiff's Fee Motion are OVERRULED as to the first sentence of objection number 1, and SUSTAINED as to the second sentence of objection number 1 and the entirety of objection number 2. <u>Pending Motion</u> Plaintiff Juliana Arcos moves for an award of attorney's fees and costs in the amount of \$21,869.80 pursuant to the Song-Beverly Consumer Warranty Act (Song-Beverly Act), Civil Code section 1790, <i>et seq.</i> <u>Standard for Motion for Attorney's Fees</u> Generally, attorney's fees are borne by the party that incurred them. (See <i>Pederson v. Kennedy</i> (1982) 128 Cal.App.3d 976, 978-79). Therefore, a party may recover attorney's fees only if provided for by contract or statute. (See Code Civ. Proc., § 1033.5, subd. (a)(10); see also <i>LNSU # 1, LLC v. Alta Del Mar Coastal Collection Community Association</i> (2023) 94 Cal.App.5th 1050, 1081 ["Each party to an action must pay its own attorney fees unless a statute or contract requires the opposing party to pay them."].) For example, the Song-Beverly Consumer Warranty Act (Song-Beverly Act), Civil Code section 1790 <i>et seq.</i>, states that: If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.
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